

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.006**

SUBJECT: Patient Grievances

POINT PERSON: Director of Legal Affairs

APPROVED: Dr. Sara Walker  **DATE: APRIL 23, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) is committed to providing a means for patients and their representatives to express grievances or complaints regarding a patient's care, treatment, or services. OSH maintains a system designed to review and provide resolution to expressed grievances in a timely manner pursuant to federal and state regulations and accreditation standards.
- B. This policy applies to all staff and patients.

II. POLICY

OSH Grievance System

- A. The OSH Superintendent delegates authority to OSH Ombudsperson(s) to oversee the grievance system as outlined in 42 Code of Federal Regulations (CFR) 482.13(a), Oregon Administrative Rules (OAR), The Joint Commission standards, and this policy.
- B. All grievances must be managed according to process guidelines established by OSH Ombudsperson(s) in accordance with Applicable Oregon Administrative Rules. Exceptions to this policy may be granted by OSH Ombudsperson(s).
- C. Information about grievance processes must be prominently posted on each unit in areas frequented by patients.
- D. At minimum, OSH's grievance system includes processes for:
 - 1. Formal grievances

2. Civil rights screenings
 3. Time sensitive grievances
 4. Grievance Reviews
- E. OSH responds to ineligible grievances per Procedures A. Complaints ineligible for the OSH grievance process are as defined in Oregon Administrative Rule (OAR) 309-118-0015. Ineligible complaints include, but are not limited to, if:
1. There is a contested case hearing or other separate process recognized by statute or administrative rule that affords notice and opportunity to be heard before an impartial decision-maker concerning that issue, including but not limited to institutional reimbursement orders, OSH informed consent decisions, and judicial determinations of continued mental illness or cognitive disability;
 2. The issue is something that OSH does not have the authority to change, including but not limited to state or federal laws, court orders and actions or decisions by other agencies, including but not limited to commitment and discharge;
 - a. An administrative or other court order concerning medications, including Informed Consent for medication or a Sell Order;
 3. The patient has previously submitted a grievance or review request on the issue that resulted in a written response, and nothing has occurred that changes the previous response;
 4. Grieving an issue on behalf of another patient. Each patient or patient representative, if applicable, must submit their own grievance;
 5. Statements that do not allege a grievance; or
 6. Disagreements about a treating practitioner's medical diagnosis of the patient.
- F. A patient or their representative may file a grievance per Procedures A. A Grievant who files an informal complaint or grievance may pursue other remedies including, but not limited to, filing a grievance directly with other relevant federal or state agencies or accreditation organizations.
1. A Grievant may file a grievance concerning patient rights related to 42 CFR 482.13 or 42 CFR 489 via the processes described in this policy.
 2. A Grievant may file a grievance alleging abuse or mistreatment pursuant to processes described in OSH policy 7.008, "Patient Abuse or Mistreatment Allegation Reporting," this policy, and other regulations.
 3. A patient with a disability may not, solely by reason of the patient's disability, be excluded from participation in, be denied the benefits of, or be subjected to

discrimination under any service provided by OSH, including the grievance process.

G. In no case may another patient act as the representative for a grieving patient.

Staff Responsibilities

- A. All staff are responsible to assist a Grievant in navigating OSH grievance processes upon request, such as providing forms and answering basic questions. Grievance Committees are responsible for reviewing and resolving patient grievances, per OAR 309-118-0010.
- B. Staff in designated Grievance Committee job classifications must complete OSH grievance training before their direct involvement in grievance processes. Training must be completed annually thereafter.
- C. Grievance Committees:
 - 1. OSH Ombuds office oversees and is an administrative supporting member of Grievance Committees at OSH.
 - 2. Grievance Committees must be made of at least two staff from the following job classifications:
 - a. Nurse Manager,
 - b. Unit Administrator, and/or
 - c. Treatment Care Plan Specialist.
 - d. A Program Director and/or an Associate Director of Nursing may act as Grievance Committee members to assist with complex grievance issues, to assist with a high volume of grievances on the unit, or when other designated staff are unavailable.

NOTE: When a Grievance Committee member is the subject of a grievance, the grievance must be addressed by a Grievance Committee comprised of a Program Director and an Associate Director of Nursing only. When a Program Director or an Associate Director of Nursing is the subject of a grievance, then the grievance must be addressed by a Grievance Committee comprised of the Deputy Superintendent and the Director of Nursing.

- 3. A Grievance Committee may be made of two or more staff from the same designated job classification.

- 4. Exceptions to Grievance Committee designated job classifications (i.e., Grievance Committee participation by a staff not in a designated job classification) must be approved by OSH Ombuds office in advance.
- D. Staff may not alter, impede, or destroy a grievance.
- E. Staff may not prevent a Grievant from submitting a grievance.
- F. Staff must provide a written response to a formal grievance per Procedures A within seven (7) calendar days after OSH receives a grievance. The written grievance response timeframe may be extended per Procedures A.
- G. Within 3 days of receiving a time-sensitive grievance, staff must follow Procedure C.
- H. Grievances alleging civil right violations must be sent to OSH Ombuds for screening
- I. Grievances alleging abuse must be sent to a state agency authorized to investigate abuse allegations.
- J. Grievances alleging criminal activity must follow OSH policy 8.029 “Staff Response to Alleged Criminal Acts and Contraband” and actions outlined in Procedures A. Criminal activity
- K. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- L. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. “Abuse” is as defined in OSH policy 7.008, “Patient Abuse Allegation Reporting.” Abuse or mistreatment means any act or absence of action toward a patient by staff inconsistent with prescribed treatment and care and falls within the definitions of abuse found in Oregon Revised Statute (ORS) 419B.005, ORS 430.735, and ORS 124.050; or as outlined in applicable policies, rules and protocols; and violates the well-being of the patient.
- B. “Civil rights violation grievance” includes, but is not limited to, grievances related to race, religion, national origin, gender identity, sexual orientation, tribal affiliation, cultural practices, immigration status, and limited English proficiency.

- C. "Grievance" is as defined in Oregon Administrative Rule (OAR) 309-118-0005. Grievance means a patient's or their representative's complaint regarding:
1. Substance or application of any OSH policy or rule that adversely affects the patient,
 2. Lack of any rule or OSH policy concerning a matter that adversely affects the patient, or
 3. Any decision or action by OSH staff that adversely affects the patient.
- D. "Grievance Committee" consists of a group of two or more designated staff who have the responsibility of reviewing and resolving patient grievances, per OAR 309-118-0010.
- E. "Grievant" in this policy means a patient or their representative who submits a grievance.
- F. "Person with a disability" is a person with a physical or mental impairment that substantially limits one or more major life activities, has a record of such impairment, or is regarded as having such an impairment. Such major life activities include: walking, speaking, breathing, performing manual tasks, seeing, hearing, learning, caring for oneself, or working.
- G. "Representative" in this policy means a person who acts on behalf of a patient with respect to a grievance, including, but not limited to, a relative, friend, employee, attorney, or legal guardian. The term "representative" does not include a patient.
- H. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- I. "Time Sensitive Grievance" refers to grievances that are likely to cause irreversible harm to a substantial right of the patient if it is not immediately addressed.

IV. PROCEDURES

- Procedures A OSH Grievance Process
- Procedures B Grievance Review Process
- Procedures C Time Sensitive Grievances

V. ATTACHMENTS

- Attachment A OSH Patient Grievance and Committee Response Form
- Attachment B Ineligible Letter

Attachment C OSH and OHA Review Form

Attachment D OSH Patient Grievance Process Flowchart

VI. RELATED OSH POLICIES AND PROTOCOLS

6.001 Patient Transfers

6.002 Authorized Person Passes

6.003 Seclusion or Restraint Processes

6.011 Treatment Care Planning

6.044 Guardianship/Conservatorship

7.002 Media Access for Patients

7.005 Patient Rights

7.008 Patient Abuse and Mistreatment Allegation Reporting

7.015 Patient Rights Restrictions

8.014 Room, Unit, Treatment Mall Searches

9.002 Training for Health Care Personnel

VII. REFERENCES

All applicable collective bargaining agreements and contracts.

42 C.F.R. §482.13(a).

Joint Commission Resources, Inc. (2019). *The joint commission comprehensive accreditation manual for hospitals*. RI.01.07.01. Oakbrook Terrace, IL: Author.

Joint Commission Resources, Inc. (2019). *The joint commission comprehensive accreditation manual for behavioral healthcare*. RI.01.07.01. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule § 309-035-0183.

Oregon Administrative Rule §§ 309-118-0000 — 309-118-0050.

Oregon Revised Statute § 124.050

Oregon Revised Statute § 419B.005.

Oregon Revised Statute § 430.735.

Section 504, Rehabilitation Act of 1973, 29 U.S.C. §794.